

25NNCV00474 25NNCV00474

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Motion: DEMURRER TO CROSS-COMPLAINT FILED BY VARTAN TER MINASYAN AND MOTION TO STRIKE

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Case Number: 25NNCV00474 Hearing Date: August 11, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

ARSEN KOSEYAN,

Plaintiff(s),

vs.

V.V.

INVESTMENTS, LLC, et al.,

Defendant(s).

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CASE NO.: 25NNCV00474

[TENTATIVE]

ORDER RE: DEMURRER TO CROSS-COMPLAINT FILED BY VARTAN TER MINASYAN AND
MOTION TO STRIKE

Dept.

3

8:30

a.m.

August

11, 2026

I. INTRODUCTION

On January

24, 2026, plaintiff Arsen Koseyan ("Arsen") filed this action against defendant Vartan Ter Minasyan ("Minasyan"), among others, arising from a real estate transaction. Arsen filed the operative First Amended Complaint on May 28, 2025.

Due to the similarity of the parties' names in the action, the Court refers to them by their first names and intends no disrespect by doing so.

On

December 29, 2025, Minasyan filed a cross-complaint against Arsen, Arutyun Koseyan ("Arutyun"), and Gardena Truck Stop Incorporated ("Gardena Truck Stop") (collectively, "Defendants"). The Cross-Complaint alleges causes of action for:

(1) breach of oral partnership agreement, (2) breach of fiduciary duty, (3) Uniform Voidable Transfer Act, (4) conspiracy, and (5) accounting.

Defendants

filed a demurrer and motion to strike on March 19, 2026.

Minasyan

filed opposition briefs on July 29, 2026.

Defendants

have not filed any reply briefs.

II. LEGAL STANDARDS

A.

Demurrer

A demurrer tests the legal sufficiency

of the pleadings and will be sustained only where the pleading is defective on its face. (*City of Atascadero v. Merrill*

Lynch, *Pierce*, *Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445, 459.)

“We treat the demurrer as admitting all material facts properly pleaded but not contentions, deductions or conclusions of fact or law. We accept the factual allegations of the complaint as true and also consider matters which may be judicially noticed. [Citation.]” (*Mitchell*

v. California Department of Public Health (2016) 1 Cal.App.5th 1000, 1007; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604 [“the facts alleged in the pleading are deemed to be true, however improbable they may be”].)

A demurrer may be brought on the

grounds that it is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s*

of California, Inc. (1993) 14 Cal.App.4th 612, 616.) A demurrer for uncertainty will be sustained only where the complaint is so bad that the defendant cannot reasonably respond. (Code Civ. Proc., § 430.10, subd. (f).) Where the complaint contains substantial factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty

will be overruled or plaintiff will be given leave to amend. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

B.

Motion
to Strike

Any party,
within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a); Stafford v. Shultz (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].) The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

III. DISCUSSION

A.

Demurrer

Minasyan alleges that Gardena Truck Stop is the legal title holder of the property commonly known as 333 East Rosecrans Avenue, Gardena, CA 90248 ("Property"). Minasyan claims that he was engaged in a sole proprietorship at the Property, pursuant to a lease, selling to the public diesel fuel, propane, tires, foods, drinks, and other items, and performing vehicular services, when he entered into an oral partnership agreement with Arsen to co-own and operate the business as equal partners. (Cross-Compl., ¶¶ 11-13.)

Minasyan claims Arsen breached this

agreement by converting Minasyan's portion of the business's net profits. Minasyan also alleges that Arsen breached his fiduciary duty by misappropriating an opportunity for the partnership to acquire an interest in the Property and acquired that interest through Arsen's alter ego, Gardena Truck Stop. (Cross-Compl., ¶¶ 21-28, 35-38.) The other cross-defendant, Arutyun, is Arsen's brother and allegedly participated in a conspiracy with Arsen and Gardena Truck Stop to usurp the partnership opportunity and breach the fiduciary duties owed by Arsen to Minasyan. (Cross-Compl., ¶¶ 45-46.)

Cross-Defendants argue that the First and Second Causes of Action for breach of contract and breach of fiduciary duty are uncertain and fail to state sufficient facts because Minasyan fails to specify the precise date when any breach of contract or breach of fiduciary duties occurred or what contractual or fiduciary duty was breached. Cross-Defendants claim that Minasyan is required to allege the dates of breach in order to determine whether the statute of limitations has lapsed. Cross-Defendants also contend that Minasyan failed to allege the date the partnership was formed, its terms, the parties' capital contributions, the respective ownership interests, along with other details. Cross-Defendants further argue that Minasyan's claim for breach of fiduciary duty is barred by the economic loss rule.

These arguments are meritless because any uncertainty of the timing of specific breaches can be determined through discovery and "[w]here a complaint does not reveal on its face that it is barred by the statute of limitations, a plaintiff has no obligation to plead around the defense." (JPMorgan Chase Bank, N.A. v. Ward (2019) 33 Cal. App. 5th 678, 689.)

Also, there is no uncertainty about any terms of the partnership agreement that was breached because Minasyan alleges that Arsen converted his portion of the business's net profits. Likewise, Minasyan sufficiently pleads that Arsen breached the duty of loyalty by usurping a partnership opportunity to acquire the Property, since control of the Property "determines whether the partnership keeps its location, its rent, and ultimately its going-concern value." (Opp., p. 6.)

Furthermore, additional detail regarding the partnership agreement is unnecessary because Minasyan alleges that he and Arsen orally agreed to "co-own and operate the BUSINESS as co-equal, co-partners, thereby creating a general partnership" and partners are

entitled to an equal share of partnership profits, pursuant to Corporations Code § 16401(b). Moreover, Cross-Defendants argue that Minasyan's claim for breach of fiduciary duty is barred by the economic loss rule. (Demurrer, pp. 7-8.) However, the economic loss rule does not apply because fiduciary duties are imposed by statute and independent of contractual duties. (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 42-43.) Accordingly, the demurrer to the First and Second Causes of Action is OVERRULED.

Third, Cross-Defendants argue that Minasyan fails to allege a UVTA claim because no debtor-creditor relationship is alleged. (Demurrer, pp. 10-11.) Minasyan argues that he is the creditor and Arsen is the debtor because Arsen converted Minasyan's share of the business's profits and usurped the partnership's business opportunity. (Opp., p. 7.) However, even if Minasyan alleges a debtor-creditor relationship, no transfer between Koseyan and Gardena Truck Stop is alleged because title was taken by Gardena Truck Stop and there are no allegations that the original owner of the Property failed to receive its reasonably equivalent value in exchange.

Accordingly, the demurrer to the Third Cause of Action is SUSTAINED.

Fourth, Cross-Defendants argue that Minasyan cannot allege a cause of action for "conspiracy" because it is merely a legal doctrine that imposes liability on conspirators. (Demurrer, p. 11.) Even if "conspiracy" is not technically a cause of action, it serves to allege joint liability between Arsen, Arutyun, and Gardena Truck Stop for Arsen's breach of fiduciary duty. To support a conspiracy claim, a plaintiff must allege the following elements: "(1) the formation and operation of the conspiracy, (2) wrongful conduct in furtherance of the conspiracy, and (3) damages arising from the wrongful conduct." (AREI II Cases (2013) 216 Cal.App.4th 1004, 1022.) Here, Minasyan sufficiently alleges that Arsen and Arutyun formed Gardena Truck Stop for the purpose of usurping the partnership's opportunity to purchase the Property. (Cross-Compl., ¶ 7.) Therefore, the demurrer to the Fourth Cause of Action is OVERRULED.

Last, Cross-Defendants argue that Minasyan cannot assert a claim for an accounting against Arutyun or Gardena and that an accounting is inappropriate because damages can be determined through ordinary discovery and legal remedies since there are identifiable profits and proceeds. (Demurrer, pp. 11-12.) In opposition, Minasyan argues that an

accounting, not a fixed damages calculation, is the appropriate remedy due to the information asymmetry between the parties. The Court agrees; Cross-Defendants apparently “seized exclusive control of the partnership business and property, and have operated them for years” without providing any records and Minasyan cannot state a sum certain without them. (Opp., p. 10.) Where it is necessary to have an accounting to determine the plaintiff’s rights, “whether the facts would have given jurisdiction to a court of equity is of no consequence.” (Remme v. Herzog (1963) 222 Cal.App.2d 863, 865.) Therefore, the demurrer to the Fifth Cause of Action is OVERRULED.

B.

Motion
to Strike

Cross-Defendants move to strike

Minasyan’s allegations of alter ego and punitive damages, as well as Minasyan’s prayer for reasonable attorney fees.

Cross-Defendants argue that Minasyan

fails to allege sufficient facts to establish an alter ego relationship. Alter ego allegations may be pleaded by ultimate fact and here, Minasyan pleads a unity of interest between Arsen and Gardena Truck Stop, that Gardena Truck Stop is a mere shell, instrumentality, and conduit through which Arsen does business, and that adherence to the fiction of separateness would sanction fraud and promote injustice. (Cross-Compl., ¶¶ 5-7.) These allegations are sufficient according to the holding of Rutherford Holdings, LLC v. Plaza Del Rey (2014) 223 Cal.App.4th 221, 235-236.) Therefore, the motion to strike Minasyan’s alter ego allegations is DENIED.

Next, Cross-Defendants argue that Minasyan’s

request for punitive damages is unsupported by any allegation of fraud, malice or oppression as required by Civil Code § 3294. In opposition, Minasyan argues that he sufficiently alleges that Cross-Defendants acted fraudulently by concealing the opportunity to purchase the Property, using Gardena Truck Stop to purchase the Property on February 2, 2023, and diverting profits that were owed to Minasyan. Accordingly, the motion to strike Minasyan’s prayer for punitive damages is DENIED.

Last, Cross-Defendants move to strike

Minasyan’s request for attorney’s fees because there is no statute or contract

that provide a basis for recovering them. (Motion, pp. 9-10.) While Minasyan claims that his Third Cause of Action under the UVTA entitles him to fees under the “tort of another” doctrine, the Court sustained the demurrer to his Third Cause of Action; therefore, the motion to strike the request for attorneys’ fees is GRANTED with leave to amend.

IV. CONCLUSION

The demurrer is OVERRULED as to the First, Second, Fourth, and Fifth Causes of Action and SUSTAINED as to the Third Cause of Action with 20 days’ leave to amend.

The motion to strike is DENIED as to Minasyan’s allegations of alter ego and prayer for punitive damages. The motion is GRANTED with respect to Minasyan’s request for attorneys’ fees with 20 days’ leave to amend.

Cross-Defendants to give notice.

Dated
this 11th
day of August
2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.